

Amended claims

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Applicant: BASF BEAUTY CARE SOLUTIONS FRANCE SAS
Application No.: 08 760 698.4-2107

Auxiliary Request

Amended set of claims (marked-up copy)

1. Use of at least one substance ~~to stimulate~~stimulating the expression of a receptor of a neuromediator coded by the POMC gene chosen from among MC-1R, MC-2R, and μ opioid R, ~~in keratinocytes~~ at least one type of skin cells expressing at least one of these receptors, and a product of the POMC gene, as an active ingredient in a cosmetic composition ~~wherein the said substance is an extract of common yarrow plant (*Achillea millefolium*)~~, to prevent and/or fight against cutaneous aging and/or against the effects of stress inducing the variations observed during the process of cutaneous aging, and/or to prevent and/or fight against the diminishing of epidermal homeostasis, and/or to encourage epithelialization, and/or to improve cellular proliferation and differentiation, notably at the epidermal level, and/or to prevent or fight against a diminishing of cutaneous vascularization, and/or to improve skin vascularization, and/or to improve vascular hyperpermeability, ~~and/or to improve angiogenesis during scarring of the skin~~, and/or to prevent and/or fight against a diminishing of skin innervation, and/or to improve skin innervation, or to generate a sensation of well-being, and wherein the skin cells are keratinocytes as an active ingredient in a cosmetic composition wherein the said substance is chosen from among:

- ~~— Extract of common yarrow plant (*Achillea millefolium*);~~
- ~~— Extract of blackthorn (*Prunus spinosa*);~~
- ~~— Extract of sour cherry (*Prunus cerasus*);~~
- ~~— Extract of wild taro (*Colocasia esculenta*);~~
- ~~— Extract of wild hemp (*Galeopsis ochroleuca*);~~

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- Extract of Eburnamonine (*Apocynacea Amsonia Abrenaeomontan*);
- (Z)-docahydro-6, 8a-dihydroxy-1-isopropyl-3a, 6-dimethylazulen-5-yl-2-methylbut-2-enoate;
- Phenylacetic acid-3,6,9-trimethyl-2,7-dioxo-2,3,3a,4,5,7,8a,9b-octahydro-azuleno[4,5-b]furan-4-yl;
- 2,6-dimethyl-4(2-methyl-butenoate)-5,6-(1-isopropyl-1-hydroxycyclopentane))-1,2-epoxycycloheptane under CAS number 352220-52-1 and/or esters thereof
- 7-acetate-2,6-dimethyl-4(2-methyl-butenoate)-5,6-(1-isopropyl-1-hydroxycyclopentane))-1,2-epoxycycloheptane known under CAS number 86892-41-8
- Mango extract transformed with lactobacillus
- Date extract transformed with lactobacillus
- Papaya extract transformed with lactic bacteria
- Banana extract transformed with lactic bacteria
- and any mixture of these.

2. Use according to claim 1 wherein cutaneous aging is photo-induced cutaneous aging and/or chronobiological cutaneous aging;

3. Use according to any one of the claims 1 to 2 in order to promote cellular homeostasis, in particular encouraging the proliferation of keratinocytes, in order to permit re-epithelialization.

4. Use according to any one of claims 1 to 2, wherein the substance increases the synthesis of NGF.

5. Use according to claim 4, wherein the substance increases the growth of peripheral nerves at the cutaneous level.

6. Use according to any one of claims 1 to 2, wherein the substance increases the synthesis of VEGF.

7. Use according to claim 6, wherein the substance increases vascularization at the cutaneous level.

8. Use according to any one of claims 1 to 7, characterized in that said substance is chosen from among:

- Extract of common yarrow plant (*Achillea millefolium*);
- Extract of blackthorn (*Prunus spinosa*);

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~~— and any mixture thereof.~~

~~0. Use according to any one of claims 1 to 7, characterized in that said substance is an extract of sour cherry (*Prunus cerasus*).~~

~~2. Use according to claim 1, wherein the said substance also increases or maintains the PMOC expression.~~

~~403. Use according to any one of the previous claims 1 to 9, characterized in that said substance is a plant extract, and is used in cosmetic composition in an amount comprised between 0.01% and 5% (v/v).~~

~~44. Use according to any one of the previous claims 1 to 10, characterized in that said substance is a plant extract obtained by macerating said plant at 1-10% (p/p) in a solvent or a mixture of solvents.~~

~~425. Use according to claim 44, characterized in that said solvent is water.~~

~~13. Use according to any one of claims 10 to 12, characterized in that said plant extract is an extract of common yarrow plant (*Achillea millefolium*).~~

~~14. Use according to any one of claims 10 to 12, characterized in that said plant extract is an extract of blackthorn (*Prunus spinosa*) obtained by macerating fruits of blackthorn (*Prunus spinosa*).~~

~~15. Use according to any one of claims 1 to 14 to palliate a decreasing in the interaction of alpha-MSH, and/or ACTH, and/or beta-endorphin with their respective receptors, linked to cellular aging and affecting keratinocytes.~~

~~16. Use according to any one of claims 1 to 15, wherein said substance also maintains or stimulates the POMC expression gene and/or the neuromediators coded by the POMC gene in keratinocytes.~~

~~17. Use according to any one of claims 1 to 16 with an additional substance which increases or decreases the expression of at least one receptor chosen from among MC-1R and μ -opioid receptor expressed by melanocytes to prevent and/or fight against depigmentation spots related to aging, wherein the additional substance is chosen from among:~~

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Extract of common yarrow plant (*Achillea millefolium*);
1-methyl-beta-carboline-3-carboxylic acid;
Yeast fermented by lactic bacteria;
Lemon extract fermented by bifidobacterium;
Lupin extract fermented by lactic bacteria;
Soy extract fermented by lactic bacteria;
Extract of soy flour;
Extract of salsaparilla (*Smilax ornata*);
Extract of *Coccoloba obtusa*;
Extract of *Oenothera biennis* (evening primrose);
Extract of carrot;
Extract of male fern;
Aqueous or hydroalcoholic extract of *Juniperus communis* (juniper berry);
And any mixture of these.

~~18. Use of a cosmetic composition to prevent and/or fight against cutaneous aging and/or against the effects of stress inducing the variations observed during the process of cutaneous aging, the said composition comprising at least one substance such as defined in the claims 1 to 16.~~

~~19. Use of a cosmetic composition according to claim 18 for application in the prevention and/or fight against the diminishing of epidermal thickness during chronological or photo-induced cutaneous aging.~~